

		5:24-6:10, and FN 3.) This argument fails. Even if moving party is correct that the representation regarding future events is insufficient, which is not apparent from the face of the pleading, the Cross-complaint alleges that both representations are false (§§ 29, 31), which allegation the court must accept as true. (<i>Del E. Webb Corp. v. Structural Materials Co.</i> (1981) 123 Cal.App.3d 593, 604 [for purposes of demurrer, the allegations of the challenged pleading must be accepted as true].) Further, like the first cause of action, any timeliness defect is not “clearly and affirmatively” shown on the face of the Cross-complaint. (<i>Geneva Towers Ltd. Partnership v. City of San Francisco, supra</i> at 781.) <u>3rd cause of action: false promise.</u> This cause of action states sufficient facts. (CACI 1902 [elements]; Cross-complaint, §§ 17-19, 36, 37 [false promises in Subscription Agreement], 38, 39 [scienter], 41 [lack of awareness, reliance], 42 [proximately caused damages].) Moving party’s arguments as to this cause of action fail for the same reasons as discussed above. The case management conference is continued to October 12, 2026 at 9:00 a.m. in Department C28. Cross-complainant shall give notice of this ruling.
55.	Berentis v. Seybert 2024-01430186	Attorney Arthur Petrouisian’s motion to be relieved as attorney of record for plaintiff Jayson Berentis is GRANTED. The order shall become effective upon the filing of the proof of service of the executed order. Moving counsel Petrouisian shall give notice of this ruling.
56.	Njeri v. Tesla, Inc. 2025-01491391	Defendant Tesla, Inc.’s motion to compel arbitration is GRANTED. (See Code Civ. Proc., § 1281.2.) Plaintiff Irene Njeri is ORDERED to arbitrate her claims against defendant in accordance with the terms of the arbitration provision in the parties’ Motor Vehicle Order Agreement (MVOA). (See Kim Decl. at Ex. 1 [MVOA]; Sanders Decl. at Ex. 1 [same].) Defendant has met its burden to demonstrate the existence of an agreement to arbitrate the controversy. (See <i>Ramirez v. Golden Queen Mining Co., LLC</i> (2024) 102 Cal.App.5th 821, 830-832 [three-step burden shifting process]; <i>Iyere v. Wise Auto Group</i> (2023) 87 Cal.App.5th 747, 755 [same]; see also Kim Decl. §§ 2-7, Ex. 1 [MVOA].) Plaintiff has not challenged

or produced any evidence disputing the existence or authenticity of the MVOA or the arbitration agreement therein. (See *Ramirez v. Golden Queen Mining Co., LLC*, at p. 837 [if opposing party fails to carry her second-step burden, the burden shifting process stops there]; *Opp.*, in passim; *Sanders Decl.*, in passim; see also *id.* at Ex. 1 [MVOA].)

Plaintiff has failed to meet her burden to demonstrate a defense to enforcement. (See *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972 [burden].)

Plaintiff has raised a single defense to enforcement based on unconscionability. (See *Ramirez v. Charter Communications, Inc.* 16 Cal.5th at 492-493 [unconscionability, generally]; *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1243 [same].)

There is a low degree of procedural unconscionability as the arbitration agreement appears in a standardized, preprinted form contract offered by the party with superior bargaining power on a take-it-or-leave-it basis. (See *Kim Decl.* ¶¶ 3-4 [plaintiff would not have been able to place the order for the vehicle without agreeing to the MVOA], Ex. 1.) “ ‘[T]he adhesive nature of’ an arbitration agreement ‘is sufficient to establish some degree of procedural unconscionability.’ [Citations.]” (*Swain v. LaserAway Medical Group, Inc.* (2020) 57 Cal.App.5th 59, 67-68.) This is so notwithstanding the existence of an opt-out provision. (*Id.* at p. 69 [“an opt out provision does not insulate an arbitration agreement from a finding of procedural unconscionability”].)

As for defendant’s alleged failure to provide a copy of the applicable arbitration rules, it does not add to the procedural unconscionability of the agreement because plaintiff does contend that anything was hidden in the rules or that the rules are substantively unconscionable. (*Nguyen v. Applied Medical Resources Corp.* (2016) 4 Cal.App.5th 232, 249; see *Baltazar, supra*, 62 Cal.4th at p. 1246.)

Plaintiff has failed, however, to demonstrate any substantive unconscionability. (See *Baltazar, supra*, 62 Cal.4th at pp. 1243-1244 [both procedural and substantive unconscionability must be present before court may refuse to enforce a contract based on the doctrine of unconscionability]; *Ramirez v. Charter Communications, Inc., supra*, 16 Cal.5th at pp. 492-493 [although adhesion contracts are procedurally unconscionable, they nevertheless “remain valid and enforceable unless the resisting party can also show that one or more of the contract’s terms is substantively

	unconscionable or otherwise invalid"]; see also <i>id.</i> at pp. 494-495 [substantive unconscionability, generally].) Specifically, plaintiff contends the MVOA is substantively unconscionable because (1) the arbitration provision "allows for a choice of arbitration forum – but only for the party 'electing' to arbitrate," allowing "Tesla [to] 'elect' both to arbitrate in the first place, and choose the forum, and choose the rules"; (2) "the arbitration-cost provisions are substantively unconscionable and clearly violate ... the minimum due process standards for consumer arbitrations," as they serve to "discourage[] ... buyers from seeking to enforce their legal rights, as buyers are potentially faced with bearing exorbitant arbitration costs and expenses they may have to reimburse to Tesla"; and (3) the "[a]rbitration would impose prohibitive costs on Plaintiff...." (Opp. at pp. 6-7.) Plaintiff also appears to suggest that the arbitration clause somehow gives the defendant the sole discretion to select the arbitrator. (See <i>id.</i> at p. 7.) All of these arguments fail. As an initial matter, the arbitration provision in the MVOA does not provide for a choice of arbitral forum and does not grant Tesla the sole discretion to select the arbitrator. It requires arbitration of "any dispute arising out of or relating to any aspect of the relationship between [plaintiff] and Tesla ... by a single arbitrator in an arbitration administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules." (Kim Decl. at Ex. 1, p. 3.) This requirement applies equally to both parties. The mere fact that the agreement requires arbitration with AAA does not somehow render the provision "unfair" or "so one-sided as to 'shock the conscience' " such that it is substantively unconscionable. (See <i>Ramirez, supra</i>, 16 Cal.5th at pp. 494-495.) Nothing suggests the AAA will not fairly administer the arbitration. (See <i>id.</i> at p. 506 ["Normally, we assume the arbitrator will act reasonably and in conformity with the law."].) To the extent plaintiff may be complaining about the fact that Tesla drafted the agreement and in doing so was able to choose AAA as the arbitration provider—this presents an issue of procedural unconscionability (a contract presented on a take-it-or-leave-it basis without a meaningful choice or opportunity to negotiate its terms) and not substantive unconscionability (unfair or one-sided terms). As for the cost provisions that purportedly leave buyers like plaintiff "potentially faced with bearing exorbitant arbitration costs and expenses," and supposedly "impose prohibitive
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		costs on Plaintiff” (Opp. at p. 7)—the cost provision in the MVOA requires defendant to bear all costs of arbitration. It states: “[Tesla] will pay all AAA fees for any arbitration, which will be held in the city or county of [plaintiff’s] residence.” (Kim Decl. at Ex. 1, p. 3; Sanders Decl. at Ex. 1, p. 3.) Plaintiff has not acknowledged or addressed this language in her opposition brief, and has not shown or explained how she may have to shoulder any costs unique to arbitration under the terms of the MVOA. (See Opp., in passim.) Plaintiff has therefore failed to show that the agreement’s cost provisions are substantively unconscionable. (See <i>Engalla, supra</i>, 15 Cal.4th at p. 972 [burden]; see also <i>City of Monterey v. Carrnshimba</i> (2013) 215 Cal.App.4th 1068, 1099 [it is not the court’s role to develop a party’s argument for him]; <i>Cahill v. San Diego Gas & Electric Co.</i> (2011) 194 Cal.App.4th 939, 956 [same]; <i>People v. Lee</i> (2008) 161 Cal.App.4th 124, 130 [“It is not the court’s function to marshal evidence for the parties or to make tactical judgments about how the parties should present their arguments.”].) Defendant’s request for judicial notice is GRANTED. (See Evid. Code, § 452, subd. (d).) The case management conference is VACATED. The court ORDERS this action stayed pending completion of arbitration or until further order of the court. (Code Civ. Proc., § 1281.4.) The court sets a status conference regarding the arbitration for January 22, 2027 at 9:00 a.m. in Department C28. Five days before the scheduled conference, the parties are ordered to submit a joint statement describing the status of the arbitration. Defendant shall give notice of this ruling.
57.	Doe 9011 v. Fullerton School District 2025-01473413	Defendant Fullerton School District’s unopposed motion for leave to file a cross-complaint is GRANTED. The proposed cross-complaints is compulsory, and is governed by C.C.P. § 426.50. It provides that “the court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith.” This provision “shall be liberally construed to avoid forfeiture of causes of action.” Here, there is no evidence of bad faith.